

Court No. - 3

Case :- WRIT - C No. - 54702 of 2011

Petitioner :- Kartar Singh

Respondent :- State Of U.P. Thru Its Secy. And Others

Petitioner Counsel :- Rajat Kumar Shukla, Puneet Kumar Gupta

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Amitava Lala, J.

Hon'ble Vinay Kumar Mathur, J.

Petitioner's contention is that recovery certificate has been issued to him without giving any opportunity of hearing which is provided under Clause 8.1(b)III of U.P. Electricity Supply Code, 2005.

We have come to know that the proceedings have been initiated on account of theft of electricity under Section 135 of Electricity Act 2003.

Upon hearing the learned Counsel for the parties, we dispose of the writ petition at the stage of admission with the direction upon the petitioner to deposit 50% of the amount under recovery proceeding within a period of one month from this date, and subject to deposit of such sum he will be entitled to make an objection/representation immediately thereafter before the authority concerned, who will consider the same upon giving fullest opportunity of hearing and by passing a reasoned order thereon within a further period of one month from the date of filing of such objection/representation. For the purpose of effective adjudication a copy of the writ petition along with its annexures can also be treated as part and parcel of such objection /representation.

No order is passed as to cost.

However, upon deposit of said sum within one month, no coercive action will be taken against the petitioner till one week after the communication of the departmental order to be passed on such objection/representation.

Order Date :- 20.9.2011

Sandeep